

3-year rule for these lawyers

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KUALA LUMPUR: Lawyers assigned by the court to represent accused persons facing the death penalty must be active for at least three years in criminal law practice to be considered for such a task.

Bar Council criminal law committee chairman Rajpal Singh said the ruling came into effect in April after several rounds of discussions between the judiciary and the council.

"This is to ensure that only competent lawyers are allowed to handle the briefs of accused persons facing capital punishment," he said.

Murder, drug trafficking, kidnapping and possession of firearms are among the offences that carried the death penalty.

Rajpal said the court would pick lawyers to represent accused persons, be they locals or foreigners, from a pool supplied by the council. The names of lawyers would be forwarded to the Chief Registrar of the Federal Court who, in turn, would distribute the list to the registrars in the High Courts nationwide.

Rajpal said the registry in Putrajaya, which housed the Court of Appeal and Federal Court, would decide on the lawyers to represent those appealing against conviction and

sentence.

"We call on lawyers to register with us so that their names can be forwarded to the judiciary."

The minimum three-year criminal law practice criterion was set by Chief Justice Tun Zaki Azmi, who wanted experienced lawyers to handle capital punishment cases for speedy disposal.

This matter gained momentum last year when a Federal Court ruling on Sept 15 held that a lawyer's incompetence in conducting the defence in a criminal trial could be grounds to set aside a conviction.

Retired judge Datuk Gopal Sri Ram, who delivered the landmark

judgment, said appellate court interference was inevitable only if the lawyer's lack of competence was obvious and had deprived the accused of a fair trial.

Bangladeshi Shamim Reza Abdul Samad, who had appealed against his conviction for the murder of a university student, had canvassed before the apex court that he was represented by an inept counsel. The court had assigned the counsel to represent Shamim at his trial in the Shah Alam High Court.

However, the Federal Court dismissed the appeal on the grounds that the facts of the case were overwhelming that Shamim had commit-

ted the murder and the allegation of incompetency was unfounded.

In another matter, Rajpal said the government had raised the "getting up" fee by 100 per cent since April for assigned lawyers. The fee is now RM6,000 in the High Court RM3,000 in the Court of Appeal and RM3,500 in the Federal Court.

Other payments, including transport allowance, accommodation, mileage, daily appearance in court until the completion of the trial remain unchanged.

"A lawyer can earn RM15,000 if he is entrusted to handle two cases in a month," he said, adding that the amount earned was tax-free.